

MT.5 Forms & Documents Index

Every document a Montana owner-builder is likely to meet — what each one is, when you need it, and which office it comes from.

Before you use this document

This is a process reference, not legal advice. Montana's building code does not apply to a residential building of fewer than five dwelling units unless the local legislative body has adopted it (50-60-102(1)(a), MCA) — but the electrical permit, the energy code, and all of water and wastewater law survive that exemption, on separate tracks with separate offices. Confirm every item with the office that will actually issue it. Montana names most of its permit documents rather than numbering them, so this index prints names as published. Your county's septic and addressing packets are its own.

Documents a Montana owner-builder will actually encounter

Document	What it is and when you need it	Where it comes from
Homeowner Electrical Permit (type EOWN)	The one form most readers of this kit need. The department publishes it specifically as a " <i>Permit for Homeowners personally performing work on their own home</i> ," alongside the residential (ERES) and commercial (ECON) versions. Remember why you still need it: 37-68-103(3)(a) excuses you from the electrician's license , not from the permit (MT.1) — and the permit rule limits it to your own residence, not a spec or rental build (ARM 24.301.431(3)). Valid 18 months with one 18-month renewal. When: before the first wire — and certainly before your power supplier will connect you (50-60-605).	DLI — bsd.dli.mt.gov → Electrical Permits; online at ebiz.mt.gov
Alternative Energy Permit	A separate electrical application the department publishes " <i>for use by non-licensed installers</i> " for generators, solar, and wind. Read it against 37-68-103(3)(b), which removes grid-tied generator work from the homeowner exemption — the permit form and the licensing question are two different tests, so settle both before you buy panels.	DLI — same page
Electrical Permit — Residential / Commercial · Permit Transfer Form · Electrical Information Pamphlet	The contractor-facing versions, the form for moving a permit to another party, and a plain-language pamphlet the Building Codes Bureau publishes to explain state electrical requirements. The pamphlet is free and is the closest thing Montana offers to an official owner-builder handbook for the trade.	DLI — same page

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Plumbing Permit application	Needed only if someone other than you does the plumbing, or if a certified local program has jurisdiction — as owner of residential property doing the work personally you need no permit at all (50-60-506(4)). If you do apply, note that Montana runs the Uniform Plumbing Code , not the IPC. Ask for the legible fixture table: the department publishes a clear copy because ARM 24.301.351 <i>"is very difficult to read."</i>	DLI — Plumbing Permits, or your local program
Mechanical Permit application	Covers heating, ventilating, cooling and — worth noting — gas piping . The department ties state mechanical permits to buildings <i>"to which state building permits are applicable,"</i> which your exempt house is not; confirm your building's status rather than assuming either way. When: before installation, if required.	DLI — Mechanical Permits, or your local program
Building Permit / Plan Review Application · Commercial Building Checklist	The state building permit package — which you will probably never file, because a residential building of fewer than five dwelling units is outside the state building code (50-60-102(1)(a)). Listed here so you recognize it and do not waste weeks on it. Where a state building permit <i>is</i> required, it must be issued before the plumbing, mechanical, or electrical permits are.	DLI — Building Permits
The department's single-family dwelling checklist	Worth asking for by name. Certified jurisdictions must make available <i>"a checklist devised by the department pursuant to 50-60-118 for single-family dwellings,"</i> and a contractor who attaches a completed one to the submitted plans is entitled to the permit or a written plan disapproval within 10 working days (50-60-106(2)(c)). A statewide checklist with a clock attached to it.	Your certified local program
Construction contractor license	Required since January 1, 2026 of anyone engaging in business as a construction contractor (37-45-201). As an owner working on your own property you are exempt (37-45-104(13)) — but you will use the license lookup constantly, because verifying a contractor's license on the date of the contract is what switches on your liability shield (37-45-202).	DLI → Lookup a License

Documents a Montana owner-builder will actually encounter

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Independent Contractor Exemption Certificate (ICEC)	Held by a solo trade with no employees (39-71-417). Ask for a copy from every one-person business you engage and file it — hiring someone who lacks a required certificate is named as unprofessional conduct for a licensee (37-45-301(1)(d)), and the underlying question is who counts as your employee.	The contractor holds it; DLI ICEC Program
Certificate of Subdivision Approval — or the exemption certification	The document that decides whether the parcel is buildable. One of these must exist before you may erect or occupy a building needing water or sewage facilities (76-4-121). An exemption instead of a certificate is fine, but it must appear on the plat or certificate of survey and <i>"must quote in its entirety the wording of the applicable exemption"</i> (76-4-122(2)(c)). When: before you buy the land.	County clerk and recorder (the record); DEQ / county (the review)
County septic permit and site evaluation	There is no state form. The application, the soil and site work, the setbacks, and the inspection before cover are your county's under its own regulations, with the local health officer holding real statutory authority (76-4-122(2)(a); 76-4-125(2)). When: after the site evaluation, before any excavation for the system.	County environmental health / sanitarian
Notice of Intent to Appropriate Groundwater	Filed with DNRC and authorized by it before you drill (85-2-306(3)(b)). Defects are notified within 10 business days and an uncorrected notice terminates after 60 days. Once authorized you have five years to complete the appropriation.	DNRC — dnrc.mt.gov → Water Resources
Notice of Completion · Certificate of Water Right	Filed within 60 days of completing the well and putting water to beneficial use (85-2-306(3)(c)(i)). No certificate of water right issues until it is correct and complete — and the date you file it is the priority date of your right (85-2-306(3)(d)). Do not let this one sit in a truck.	DNRC — same
911 address assignment · road approach permit · floodplain development permit	Three small county approvals that other applications depend on. The address is what a permit application and a power supplier both key on; the approach permit comes from whoever owns the road, which may be MDT if you meet a state highway; the floodplain permit applies whether or not a building permit does. When: early, all three.	County addressing, road department, and floodplain administrator

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Your written energy certification	Not filed — written, signed, and kept. "A person who begins construction on a residential building ... shall certify in writing to the building owner at the conclusion of construction that the residential building has been constructed in compliance with the energy-efficient construction standards" (50-60-802(1)). As owner-builder you are both parties. Name the adopted edition, list the R-values, U-factors, and equipment efficiencies you actually installed, date it, sign it.	You write it
The permanent energy label	Not filed — stuck inside your electrical panel. Under 50-60-803 and ARM 24.301.162 the builder completes a signed and dated permanent self-adhesive label, roughly four inches by six, listing insulation R-values, window U-factor, heating and cooling equipment efficiencies, and water heater efficiency, and permanently attaches it to the interior of the electrical panel. It is separate from the written certification above, and it is the version a home inspector will actually find in fifteen years. When: at completion.	You complete it; 50-60-803, MCA
Floodplain development permit — Joint Application	Where any part of the site is in a designated floodplain or floodway (76-5-404). DNRC publishes a Joint Application for Proposed Work in Montana's Streams, Wetlands, Floodplains, and Other Water Bodies; its Section C is the city or county floodplain development permit. Fees and timelines are set locally and vary widely. Design to the two-foot freeboard in 76-5-402 before you draw the foundation. When: before any site work.	Local floodplain administrator; form at dnrc.mt.gov
Certificate of occupancy	Issued by a certified local program at the end of the job (50-60-106(2)(e); 50-60-107). Outside a certified program there is no certificate of occupancy , because there is no program to issue one — see the note below.	Your certified local program

Forms that do not exist — stop looking for them

There is **no state owner-builder affidavit, exemption form, or registration.** The exemptions in 37-45-104(13), 37-68-103(3)(a), and 50-60-506(4) are self-executing in the statute — nobody grants them to you and there is nothing to apply for. There is **no state building permit for a house** of fewer than five dwelling units. There is **no state certificate of occupancy**, and outside a certified program no certificate of occupancy at all. And there is no longer any such thing as a **construction contractor registration** — it became a license on January 1, 2026 (MT.1).

Which raises the question this kit exists to answer: when a lender, insurer, appraiser, or future buyer asks for "the permits" on a rural Montana build, **what do you hand them?** This stack: the **electrical permit and its final approval**; the **signed energy certification**; the **certificate of subdivision approval or the recorded exemption**; the **county septic permit and final**; the **DNRC notice of completion and certificate of water right**; the **address assignment and approach permit**; and the record you built yourself in MT.3 — the snow load you designed to, the photographs of everything now covered, and the product data for the assemblies that matter. Assembled, that is a stronger file than most permitted houses ever produce. Unassembled, it is nothing, and you will be reconstructing it from memory years later.

Sources (verified August 2026): the electrical, plumbing, mechanical, and building permit form sets and their published descriptions — bsd.dli.mt.gov, Building Codes Program. The single-family checklist and its 10-working-day clock — 50-60-106(2)(c); 50-60-118, MCA. Certificates of occupancy — 50-60-106(2)(e); 50-60-107, MCA. Contractor licensing and the liability shield — 37-45-104(13), 37-45-201, 37-45-202, 37-45-301(1)(d), MCA; 39-71-417, MCA. Sanitation documents — 76-4-121, 76-4-122(2)(a), (2)(c), 76-4-125(2), MCA. Water filings — 85-2-306(3)(b), (3)(c)(i), (3)(d), MCA. Energy certification — 50-60-802(1), MCA. Homeowner trade exemptions — 37-68-103(3)(a), (3)(b); 50-60-506(4), MCA.